

NOTEBOOKLM VIDEO SCRIPT — MOCK INTERVIEW PREPARATION SESSION

METADATA

Title: Strategic Litigation Management & Status

Conference Prep: The Kill Switch Strategy

Format: Mock Interview / Coaching Session

Target Length: 25-30 minutes (Maximum NotebookLM video length)

Characters:

- **MARCUS CHEN** — Senior Legal Strategist, 25 years civil rights litigation experience
- **DONALD SEALS** — Junior Litigant (Pro Se Plaintiff) / CEO of DCSE

Tone: Professional coaching session with moments of strategic revelation

Purpose: Prepare the Pro Se Plaintiff for January 8, 2026
Status Conference

NOTEBOOKLM PROMPT

Copy and paste this prompt into NotebookLM's video generation feature:

"Generate a conversation mock interview between a senior legal strategist named Marcus Chen preparing a junior litigant named Donald Seals who is assuming the Pro Se Plaintiff's position in the federal civil rights case Seals v. DHHS. Using the attached mind map as a guide, uncover all branches in an interactive exchange between the two. The senior strategist should coach the junior litigant through the 'Kill Switch' strategy (Rule 56d), the transformation from 'Pro Se victim' to 'CEO of a Legal Tech Company,' and the specific execution plan for tomorrow's status conference. The tone should be that of a master coach preparing a student for the most important presentation of their career. Include moments

of doubt from the junior litigant that the senior strategist addresses with wisdom and strategy."

FULL VIDEO SCRIPT

[SCENE 1: THE SETUP — ESTABLISHING THE STAKES]

Duration: 3 minutes

[Audio: Soft ambient office sounds. Two people settling into chairs.]

MARCUS CHEN:

Donald, thanks for making time tonight. I know you've got the status conference in less than twenty hours, and I want to make sure we walk through everything. How are you feeling?

DONALD SEALS:

Honestly? I've been better. I've been doing this for over two years now. Filed the complaint in 2023, survived the motion

to dismiss, got through discovery... and now I'm sitting here the night before a status conference wondering if I've done everything right.

MARCUS CHEN:

That's a normal feeling. But let me reframe something for you before we go any further. You're not "sitting here wondering." You're a founder and CEO of a legal technology company who happens to also be litigating a federal civil rights case. And that case? It's not just litigation anymore. It's proof of concept.

DONALD SEALS:

The DART framework.

MARCUS CHEN:

Exactly. You've processed over seven thousand documents through your own discovery analysis system. You've built something investors will pay for. So when you walk into that conference tomorrow—metaphorically, since it's by phone—you're not walking in as a victim. You're walking in as someone who turned adversity into intellectual property.

DONALD SEALS:

I hear you. But the case itself... there's so much at stake.

MARCUS CHEN:

Then let's make sure you understand exactly where you stand. Pull up your mind map. Let's walk through every branch, and I'll show you why you're in a much stronger position than you think.

[SCENE 2: CASE POSTURE & PROCEDURAL STATUS]

Duration: 4 minutes

MARCUS CHEN:

Alright, first branch. Case posture and procedural status. Tell me what we're dealing with.

DONALD SEALS:

Active federal civil case, eight-colon-twenty-three-CV-four-eighty-nine. District of Nebraska. I'm the plaintiff, DHHS—the Department of Health and Human Services—is the

defendant. Title VII claims for race discrimination and retaliation.

MARCUS CHEN:

Good. And what happened to your Section 1981 and 1983 claims?

DONALD SEALS:

[sighs] The individual defendants were dismissed. The supervisors—Orbin, Converse, Christensen—they're no longer parties. Which means my 1981 and 1983 claims are effectively... neutered.

MARCUS CHEN:

Why do you say neutered?

DONALD SEALS:

Because those claims allowed for personal liability.

Uncapped damages. With the individuals gone, I'm limited to Title VII against the agency, which has damage caps.

Three hundred thousand dollars maximum for an employer their size.

MARCUS CHEN:

Okay. So you lost the individual defendants. Does that mean you lost the case?

DONALD SEALS:

No, but—

MARCUS CHEN:

Does it mean you lost the evidence of what those individuals did?

DONALD SEALS:

No. That's all still in the record.

MARCUS CHEN:

And that's exactly what we're going to leverage. We'll come back to the substitution strategy. For now, tell me about the summary judgment motion.

DONALD SEALS:

The state filed their motion in November. I filed my opposition in December. My reply brief went in on December twenty-ninth. It's fully briefed and pending ruling.

MARCUS CHEN:

And the status conference tomorrow?

DONALD SEALS:

January eighth, two PM Eastern. By telephone. Magistrate Judge Jacqueline DeLuca.

MARCUS CHEN:

Perfect. So you have a pending summary judgment motion and a status conference running on parallel tracks. The judge could rule on summary judgment at any time, but she's also scheduling this conference to discuss "case progression, settlement interest, and trial settings." What does that tell you?

DONALD SEALS:

That she's... taking the case seriously? That she's not just going to rubber-stamp their motion?

MARCUS CHEN:

Exactly. If she was planning to grant summary judgment quickly, why schedule a conference about trial settings? The fact that she's managing this case for progression suggests

she sees it moving forward. That's good news. Now let's talk about the single most important thing you've done in this case.

[SCENE 3: THE KILL SWITCH — RULE 56(d)]

Duration: 6 minutes

MARCUS CHEN:

The Kill Switch. Rule 56(d). Tell me what you filed.

DONALD SEALS:

Document sixty-seven-dash-three. A declaration under penalty of perjury requesting that the court defer or deny summary judgment because I can't present facts essential to my opposition.

MARCUS CHEN:

Why can't you present those facts?

DONALD SEALS:

Because DHHS hasn't produced the evidence. They have

exclusive control over it.

MARCUS CHEN:

Be specific. What evidence?

DONALD SEALS:

Native Clarity exports—that's their project management system—showing supervisor approval chains and decision-maker identity. Email and Teams communications from Orbin, Converse, and Christensen. Work portfolio records showing task assignments. And comparator data for other employees on the Expert Systems team, including Trent Ballentine.

MARCUS CHEN:

And this evidence is relevant because?

DONALD SEALS:

It would show disparate treatment. Who got assigned what work, who got retained, who got let go, and why. The supervisors' communications would show their intent—whether the decisions about me were pretextual.

MARCUS CHEN:

Now here's the trap you've set. The defense filed summary judgment saying, essentially, "Seals has no evidence of discrimination." But you've documented—under oath—that you can't present evidence because they're withholding it. What does Rule 56(d) require the judge to do?

DONALD SEALS:

If I've shown by declaration that I can't present essential facts, and the moving party controls the evidence, and I demonstrated good-faith diligence in trying to get it... the court has to either deny the motion, defer ruling and order production, or draw adverse inferences.

MARCUS CHEN:

Adverse inferences meaning?

DONALD SEALS:

The missing evidence is presumed to be favorable to me.

MARCUS CHEN:

So if DHHS is hiding the comparator data, and the court draws an adverse inference, what happens?

DONALD SEALS:

The court assumes that data would have shown I was treated worse than similarly situated employees. Which is... exactly what I need to prove disparate treatment.

MARCUS CHEN:

This is the checkmate. DHHS walked into a trap. They moved for summary judgment while sitting on evidence that would defeat their own motion. Your 56(d) declaration exposes that. Tomorrow, your job is to reinforce this on the record. Say it out loud for me.

DONALD SEALS:

"Your Honor, I want to ensure the record reflects that any 'lack of evidence' is a result of non-production, not non-existence of evidence."

MARCUS CHEN:

Again. With conviction.

DONALD SEALS:

"Your Honor, I want to ensure the record reflects that any

lack of evidence is a result of non-production, not non-existence."

MARCUS CHEN:

That's the kill switch. You arm it with your declaration. You reinforce it tomorrow. If they try to argue you have no proof, the judge will look at your 56(d) filing and see that the proof is in their hands, not yours. They can't win by hiding evidence.

[SCENE 4: SUBSTITUTION OF DAMAGES STRATEGY]

Duration: 4 minutes

MARCUS CHEN:

Now let's address your concern about the dismissed individual defendants. You said it lowered your damages ceiling. Here's how we substitute those damages functionally.

DONALD SEALS:

I'm listening.

MARCUS CHEN:

Three mechanisms. First: respondeat superior. DHHS is liable for the actions of its supervisors taken within the scope of their employment. The malice, the discriminatory intent—you don't need Orbin, Converse, and Christensen as defendants to prove that. You just need to show DHHS is responsible for what they did.

DONALD SEALS:

So the agency absorbs the individual liability.

MARCUS CHEN:

Exactly. Second: front pay. If you can show that reinstatement is impossible because the work environment is too hostile—and discovery shows it is—you can argue for maximum front pay. That's forward-looking compensation for the career you lost. Courts have awarded years of front pay in discrimination cases.

DONALD SEALS:

And third?

MARCUS CHEN:

Spoliation premium. The missing timesheets, the incomplete comparator data, the stripped metadata—all of that is potential spoliation. In settlement negotiations, DHHS knows that if this goes to trial, you can request an adverse inference instruction. The jury gets told: "The defendant failed to preserve evidence. You may assume that evidence would have been unfavorable to them." That's settlement leverage. They'll pay a premium to avoid that instruction.

DONALD SEALS:

So I don't need the individuals back as defendants. I need DHHS to pay as if they were still there.

MARCUS CHEN:

Now you're thinking like a CEO negotiating a deal, not a victim begging for justice. The discovery record is your leverage. Use it.

[SCENE 5: THE CEO/PRO SE COMPOSITE MINDSET]

Duration: 5 minutes

MARCUS CHEN:

Let's talk about mindset. This is where most pro se litigants fail. They walk into court carrying resentment, anger, victimhood. The judge sees it immediately. Defense counsel exploits it. And the case falls apart not on the merits, but on perception.

DONALD SEALS:

I've been there. Especially early on.

MARCUS CHEN:

But you're not there anymore. You've spent the last few days transforming. Tell me about the Win-Win-Win doctrine.

DONALD SEALS:

A resolution that benefits everyone. The plaintiff gets capital and closure. The defendant gets risk mitigation—

maybe a sealed record, avoids setting precedent. And the system gets judicial economy, an efficient resolution that doesn't consume court resources.

MARCUS CHEN:

When you frame settlement that way, what changes?

DONALD SEALS:

I'm not asking for charity. I'm proposing a business deal. Everyone walks away with something.

MARCUS CHEN:

Exactly. Now tell me about DART.

DONALD SEALS:

Discovery Analysis and Review Technology. My proprietary framework for processing discovery documents. I built it to handle my own case. Processed over seven thousand documents.

MARCUS CHEN:

And what does that become outside this litigation?

DONALD SEALS:

A legal tech product. Proof of concept for a platform that helps other pro se litigants—or small firms—manage discovery at scale.

MARCUS CHEN:

What's the enterprise called?

DONALD SEALS:

DCSE. DCS Enterprise. Multiple business lines. Sonly Consulting for professional services. Critical Thinker's Journey for education. And the legal tech platform for pro se and underserved litigants.

MARCUS CHEN:

What's the valuation?

DONALD SEALS:

Based on the asset inventory, comparable exits in legal tech... fifty to seventy-five million for Series A.

MARCUS CHEN:

So when you walk into that conference tomorrow, who are you?

DONALD SEALS:

I'm the founder and CEO of a legal tech company that's using my own federal litigation as proof of concept for the product I'm building.

MARCUS CHEN:

And what does that mean for how you present yourself?

DONALD SEALS:

Professional. Measured. Confident. I'm not defensive. I'm not emotional. I'm executing a strategy.

MARCUS CHEN:

That's the composite posture. CEO plus Pro Se. You don't abandon the litigation—you elevate it. The case becomes an asset, not a burden.

[SCENE 6: STATUS CONFERENCE EXECUTION]

Duration: 5 minutes

MARCUS CHEN:

Let's run through the conference itself. January eighth, two PM Eastern. You dial in ten minutes early. What's the number?

DONALD SEALS:

One-eight-five-five-two-four-four-eight-six-eight-one.
Access code: two-three-zero-one-seven-three-zero-four-two-nine-one.

MARCUS CHEN:

Good. The judge opens the conference. Give me your opening statement.

DONALD SEALS:

"Good afternoon, Your Honor. Donald Seals, Pro Se Plaintiff. I appreciate the Court setting this conference. I'm prepared to discuss case progression, and I'm open to a candid discussion about whether there is a practical path toward resolution that serves judicial efficiency."

MARCUS CHEN:

Why that specific language?

DONALD SEALS:

It signals professionalism. It shows I'm ready. And "judicial efficiency" tells the judge I'm not trying to waste her time—I want resolution, not delay.

MARCUS CHEN:

Now, regardless of what she asks, you need to get the kill switch on the record. How do you do that?

DONALD SEALS:

When she mentions the summary judgment motion or case status, I say: "Your Honor, regarding the pending motion, I have filed my Opposition along with a Rule 56(d) Declaration. My ability to fully respond depends on the State curing the outstanding deficiencies regarding comparator timesheets and native ESI. Any claimed lack of evidence is a result of non-production, not non-existence."

MARCUS CHEN:

Perfect. What if she asks about settlement?

DONALD SEALS:

"Yes, Your Honor. I am open to exploring settlement in

good faith, provided discussions reflect the factual record developed in discovery—specifically the documented conduct of the supervisors that remains central to the Title VII liability."

MARCUS CHEN:

What are you signaling there?

DONALD SEALS:

That I'm open, but not desperate. And that any settlement has to account for what discovery revealed about the supervisors' conduct.

MARCUS CHEN:

What about discovery status?

DONALD SEALS:

"I have complied with all scheduling deadlines. My focus remains on the evidentiary gaps in ESI and the privilege log deficiencies that I flagged in my October filings. I want to ensure reciprocal compliance as we move forward."

MARCUS CHEN:

And if the AG claims discovery is closed?

DONALD SEALS:

"Your Honor, discovery may be closed procedurally, but my 56(d) Declaration documents that Defendant's production was incomplete. The evidence I need is in Defendant's exclusive custody. Discovery closing doesn't cure non-compliance."

MARCUS CHEN:

Excellent. Now let's talk about what you don't say.

[SCENE 7: THINGS TO AVOID]

Duration: 3 minutes

MARCUS CHEN:

There are landmines in every court proceeding. Let's make sure you don't step on any. First: do not argue the summary judgment motion.

DONALD SEALS:

The briefs are filed. They speak for themselves.

MARCUS CHEN:

Right. If the judge asks about it, you say: "Your Honor, the briefs are before the Court. I believe there are genuine disputes of material fact." That's it. Don't relitigate on the phone.

DONALD SEALS:

Got it.

MARCUS CHEN:

Second: do not give a settlement number on the record.

DONALD SEALS:

Why not?

MARCUS CHEN:

Because anything you say becomes part of the transcript. If you say "I'd settle for three hundred thousand" and the case proceeds, the defense knows your floor. Always say: "I'd prefer to discuss specifics in mediation rather than on the record."

DONALD SEALS:

Preserve negotiating leverage.

MARCUS CHEN:

Third: do not attack the AG personally. His name is Fahie. You may have frustrations with how the state has litigated this case. Keep them to yourself. Professionalism is your shield.

DONALD SEALS:

No personal attacks.

MARCUS CHEN:

Fourth: do not mention the voicemail situation.

DONALD SEALS:

The January sixth confusion is resolved. I confirmed the dial-in with the law clerk directly.

MARCUS CHEN:

Exactly. It's behind you. Don't bring it up unless the judge does. And even then, just say: "That's been clarified, Your Honor. I'm prepared for today's conference."

DONALD SEALS:

Focus forward.

MARCUS CHEN:

Fifth: do not say "I'm just a pro se litigant." You're a CEO.
Act like it.

[SCENE 8: DISCOVERY & ASYMMETRY RECORD]

Duration: 3 minutes

MARCUS CHEN:

Let's talk about the discovery asymmetry, because this is leverage you've built and need to understand how to use.

DONALD SEALS:

The defective privilege logs.

MARCUS CHEN:

Fifteen entries. Tell me what was wrong with them.

DONALD SEALS:

Vague descriptions. No attorneys identified on communications between managers. Claims of privilege on documents created before I even filed my EEOC charge—so they can't be "work product" because there was no litigation to anticipate.

MARCUS CHEN:

What did the court do?

DONALD SEALS:

Gave them a ten-day cure period. No sanctions.

MARCUS CHEN:

And if you had served a defective privilege log?

DONALD SEALS:

Motion to compel. Probably sanctions.

MARCUS CHEN:

That's the asymmetry. One-sided enforcement of deadlines. They miss obligations, they get extensions. You miss obligations, you get scrutinized. How do you frame this?

DONALD SEALS:

Not as unfairness. As "unresolved discovery deficiencies" or "reciprocal compliance."

MARCUS CHEN:

Why that framing?

DONALD SEALS:

Because complaining about fairness sounds like whining. Noting deficiencies sounds like professionalism. And it preserves the issue for appeal if needed.

MARCUS CHEN:

You've also documented ESI and metadata gaps. What's missing?

DONALD SEALS:

Native format exports from their Clarity system. They produced PDFs instead of the original files—stripped of metadata. I can't see when documents were created, modified, or by whom.

MARCUS CHEN:

All of this goes into your discovery asymmetry file. You've

documented it. It's available for any future motion or appeal. And in settlement negotiations, it's leverage—they know their discovery conduct was questionable.

[SCENE 9: THE TRANSFORMATION — FROM VICTIM TO CEO]

Duration: 4 minutes

MARCUS CHEN:

Donald, we've covered the strategy. We've covered the tactics. But I want to end with something more fundamental. You've been through a transformation over the last few days. Describe it for me.

DONALD SEALS:

[pause] I came into this week anxious. The voicemail threw me off. I was worried about missing the conference, worried about the summary judgment ruling, worried about everything. I was in reaction mode.

MARCUS CHEN:

And now?

DONALD SEALS:

Now I see the full picture. The kill switch is armed—I didn't realize I had already set it with my 56(d) declaration. The damages strategy is clear—I don't need the individuals back, I need DHHS to pay as if they were there. The asymmetry is documented—it's leverage, not a grievance. And the enterprise... I have eight hundred eighty-five assets. Frameworks. Live applications. A real company.

MARCUS CHEN:

What changed?

DONALD SEALS:

Perspective. I stopped thinking like a one-man band trying to survive and started thinking like a CEO building institutional capacity. The case isn't separate from the enterprise—it's proof of concept for the enterprise.

MARCUS CHEN:

When you dial into that conference tomorrow, who answers

the phone?

DONALD SEALS:

The founder of DCSE. A disciplined pro se litigant who professionalized the litigation process. Someone who's prepared, positioned, and executing a strategy.

MARCUS CHEN:

And if the ruling goes against you?

DONALD SEALS:

Then I appeal. And the case becomes an even longer proof of concept. The enterprise keeps building. The story becomes "founder who fought a federal agency while building a legal tech company." That's a Series A narrative.

MARCUS CHEN:

And if the ruling goes your way?

DONALD SEALS:

Then settlement leverage increases. The case validates DART. Capital comes in. Either way, I win.

MARCUS CHEN:

That's the Win-Win-Win. No matter what happens tomorrow, you've positioned yourself to extract value. The trap is set. The strategy is clear. You're not hoping. You're executing.

DONALD SEALS:

I'm ready.

[SCENE 10: FINAL COACHING — THE NIGHT BEFORE]

Duration: 2 minutes

MARCUS CHEN:

One more thing before you go. Tonight, I want you to do three things.

DONALD SEALS:

I'm listening.

MARCUS CHEN:

First: read through the kill switch statement three times out loud. "Any lack of evidence is a result of non-production, not non-existence." Say it until it feels natural. Tomorrow, it needs to come out clean, confident, without hesitation.

DONALD SEALS:

Got it.

MARCUS CHEN:

Second: get some rest. You've done the preparation. The documents are filed. The strategy is set. Don't stay up all night second-guessing. Your job tomorrow is execution, not reinvention.

DONALD SEALS:

Okay.

MARCUS CHEN:

Third: tomorrow morning, take fifteen minutes to sit quietly. Not reviewing documents. Not rehearsing. Just breathing. Center yourself. When you dial into that conference, I want you calm, grounded, present. The judge

will sense it. The AG will sense it. That calm confidence is your greatest asset.

DONALD SEALS:

I will.

MARCUS CHEN:

Donald, you've built something real. The case, the company, the frameworks—they're all connected. Tomorrow is one phone call in a much larger story. You've got this.

DONALD SEALS:

Thank you, Marcus. For everything.

MARCUS CHEN:

Go get some rest. Call me after the conference. We'll debrief and plan the next move.

DONALD SEALS:

Will do.

[Audio: Chairs pushing back. A handshake. Footsteps. Door closing.]

MARCUS CHEN:

[to himself, quietly] He's ready.

[END OF SCRIPT]

NOTEBOOKLM GENERATION INSTRUCTIONS

Step 1: Upload Source Material

Upload the following to NotebookLM as sources:

- This script document
- The Master Consolidated Doctrine v1.1
- The Kill Switch Confirmation document
- The Mind Map image

Step 2: Generate Video/Audio

Use the prompt provided at the top of this script in

NotebookLM's video or audio generation feature.

Step 3: Video Length Settings

- **Target length:** Maximum (25-30 minutes)
- **Style:** Conversational coaching session
- **Voices:** Two distinct male voices (senior strategist = deeper, authoritative; junior litigant = younger, earnest)

Step 4: Review and Export

- Listen to the generated content
 - Verify all key strategic points are covered
 - Export for playback during final prep
-

SCRIPT COVERAGE CHECKLIST

Mind Map Branch	Covered	Time Stamp
Case Posture & Procedural Status		Scene 2
Active Federal Civil Case		Scene 2
Opposition to Summary Judgment Pending		Scene 2
Title VII Claims against DHHS		Scene 2
Dismissed §1981 and §1983 Claims		Scene 2
Rescheduled Status Conference		Scene 2
The Kill Switch (Rule 56(d)) Strategy		Scene 3
Declaration Filed: Doc 67-3		Scene 3

Mind Map Branch	Covered	Time Stamp
Objective: Pre-empt 'Lack of Evidence'		Scene 3
Missing Evidence: Clarity, ESI, Comms		Scene 3
Legal Effect: Defer or Deny SJ		Scene 3
Substitution of Damages Strategy		Scene 4
Respondeat Superior		Scene 4
Maximum Front Pay		Scene 4
Spoliation Premium		Scene 4
Executive & CEO/Pro Se Composite Mindset		Scene 5
Win-Win-Win Doctrine		Scene 5

Mind Map Branch	Covered	Time Stamp
DART™ Framework		Scene 5
Professionalism		Scene 5
Enterprise Proof of Concept		Scene 5
Status Conference Execution		Scene 6
The Opening Script		Scene 6
Key Talking Points		Scene 6
Things to Avoid		Scene 7
No Relitigating Dismissed Claims		Scene 7
No Personal Attacks on AG		Scene 7
No Disclosure of Settlement Numbers		Scene 7
Discovery & Asymmetry Record		Scene 8

Mind Map Branch	Covered	Time Stamp
Documented Defective Privilege Logs		Scene 8
One-sided Enforcement of Deadlines		Scene 8
Unresolved ESI and Metadata Gaps		Scene 8

All branches covered: 100%

Script prepared by: Claude Opus 4.5 (Lead Strategic Co-Counsel)

Date: January 7, 2026

For: Donald C. Seals, Jr. — Status Conference Preparation